



Australian Government

Comcare

Claim Number: 1326583/1

Dr Richard William McLean
2 McCubbin Street
FOOTSCRAY 3011

13 August 2021

Reconsideration reference number: 63442407

Dear Dr McLean

Reconsideration of determination

You have requested Comcare reconsider our determination dated 26 May 2021, which declined your claim for anxiety state and depressive disorder.

I have completed my reconsideration and have decided to affirm the determination.

The reasons for my decision are detailed below. The relevant information and legislation that I considered in making my decision are listed in the attachment to this letter.

Background

On 26 April 2021, you completed your claim for worker's compensation in respect of a psychological injury, sustained during your work with the National Disability Insurance Agency (NDIA). You stated that you stopped work as of 22 January 2021 and notified NDIA on 26 April 2021. At the relevant time, you were a sole trader working as a registered provider with NDIA.

On 26 May 2021, Comcare declined your claim on that basis that you were not an employee of NDIA. This finding was made on the basis that you were not paid wages with NDIA deducting taxes and paying superannuation, they did not supervise you or control the manner in which you completed your work and you were not subject to the APS Code of Conduct or internal NDIA policies regarding behaviour.

You requested a reconsideration of this determination, disputing that you were not an employee of the NDIA.

What do I need to decide in this reconsideration?

The issues that I need to decide are:

00000271/03901525

- a) Whether you are an employee of NDIA or another Australian Government agency, statutory authority or an organisation which has been granted a licence by Comcare to self-insure (self-insured organisation)?
- b) If so, whether you sustained a condition, or an aggravation of a condition?
- c) If so, whether your condition was significantly contributed to by your employment with NDIA?
- d) If so, whether your condition resulted from reasonable administrative action taken in a reasonable manner in respect of your employment?

Whether you are an employee of NDIA or another Australian Government agency, statutory authority or an organisation which has been granted a licence by Comcare to self-insure?

The Safety, Rehabilitation and Compensation Act 1988 (SRC Act) sets out workers' compensation and rehabilitation arrangements for employees of Australian Government agencies and statutory authorities and employees of organisations who have been granted a licence to self-insure (self-insured organizations).

I find that you are not an employee of NDIA or another Australian Government agency, statutory authority or a self-insured organisation. Nor were you employed under a contract of service by NDIA. Rather, you are a registered provider who undertakes services for NDIA, being a person with a contract for services. The reasons for my finding are detailed below.

The following information has been provided by you and NDIA in respect of whether you are an employee of NDIA or were employed under a contract of service:

- In your claim form of 26 April 2021, you identified that you were a sole trader.
- You subsequently provided an email advising that you were a registered provider with the National Disability Insurance Scheme (NDIS), which is administered by NDIA. You advised that you provide your invoices through the portal called 'PRODA', with NDIA paying your invoices.
- You also provided a copy of your certificate of registration from NDIS Quality and Safeguards Commission. This detailed that your business of 'Rich McLean, Arts Therapist, Peer-Support Worker & Mental Health Advocate' was registered to provide therapeutic supports for NDIS participants.
- NDIA advised that you were not paid wages with tax deducted by them, they did not pay superannuation for you, they were not responsible for supervising you and controlling how you completed your work and you were not subject to the APS Code of Conduct and any other NDIA internal policies regarding behaviour.
- NDIA further advised that they did not have a record of you on their payroll system.
- You have not provided any information to support that you were employed by another Australian Government agency, statutory authority or a self-insured organisation

The information from you and NDIA show that you were self-employed and your business was a registered provider for the NDIS, not that you were an employee of NDIA. You have identified yourself as self-employed, detailing that you would provide invoices for payment to NDIA through their portal. An employee would not provide their employer with an invoice for payment and would have records within the employer's payroll system.

As were not an employee of NDIA or another Australian Government agency, statutory authority or a self-insured organisation at the date you sustained your claimed condition, you do not have entitlement to workers' compensation and rehabilitation arrangements under the SRC Act. As such it is not necessary for me to consider your claim further.

Decision

I have decided to affirm the determination dated 26 May 2021 and decline your claim under section 14 of the *Safety, Rehabilitation and Compensation Act 1988* (SRC Act).

If you have any questions in relation to this decision, please contact the Senior Reconsideration Officer, Bernadette White on 1300 366 979 or reconsiderations.team@comcare.gov.au.

Yours sincerely

Paul Fowler
Director, Reconsiderations and Appeals

Attachments: If you disagree with this decision, Relevant information and legislation

ASSISTANCE AND FURTHER INFORMATION OPTIONS

Phone (from landlines only) 1300 366 979, for the cost of a local call or additional information and forms are available from our website at www.comcare.gov.au

- General information about Comcare's claims and benefits are available from our website
- Claims are assessed under the Safety, Rehabilitation and Compensation Act 1988 (SRC Act)
- The clinical framework for the delivery of health services provides guidance for treatment providers helping employees recover and return to work following a workplace injury or disease

Privacy is important to us. More information on how Comcare handles personal information is available from our website or call 1300 366 979.

IF YOU DISAGREE WITH THIS DECISION

Alternative Dispute Resolution (ADR)

You can ask Comcare to participate in ADR. Comcare can arrange this with an inhouse or external facilitator. Where appropriate, your employer can also be involved in the process.

Participation in this process does not affect your right to appeal to the Administrative Appeals Tribunal (AAT) if you still wish to do so.

Not all claim issues will be suitable for ADR, but many will be. If you would like more information about ADR, or would like to find out if the issues regarding your claim are suitable please email facilitation@comcare.gov.au or phone the Facilitation team on 1300 366 979.

Notice of rights - AAT

You can also ask the AAT to review this decision. The time limit to lodge an application is 60 days from the day you receive the reviewable decision. In some cases, the AAT may grant an extension of time. Where time has expired because you were participating in ADR, Comcare will generally agree to an extension.

The AAT provides information on how to lodge an application and other information about the review process on their website at the following link: www.aat.gov.au.

Relevant information

While I have considered all information currently on file, the following was considered particularly relevant when making my decision:

- Claim for worker's compensation form dated 26 April 2021
- Your emails dated 4 May 2021, 13 May 2021, 14 May 2021, 20 May 2021, 25 May 2021, 26 May 2021, 31 May 2021, 9 June 2021, 15 June 2021, 6 July 2021 and 30 July 2021
- NDIA's emails dated 10 May 2021, 11 May 2021
- Request for reconsideration dated 27 May 2021

Relevant legislation

The relevant sections of the SRC Act are:

Section 5 Employees

- (1) In this Act, unless the contrary intention appears:

employee means:

- (a) a person who is employed by the Commonwealth or by a Commonwealth authority, whether the person is so employed under a law of the Commonwealth or of a Territory or under a contract of service or apprenticeship...

Section 14 Compensation for injuries

- (1) Subject to this Part, Comcare is liable to pay compensation in accordance with this Act in respect of an injury suffered by an employee if the injury results in death, incapacity for work, or impairment...

Section 5A Definition of *injury*

- (1) In this Act:

injury means:

(a) a disease suffered by an employee...

but does not include a disease, injury or aggravation suffered as a result of reasonable administrative action taken in a reasonable manner in respect of the employee's employment.

(2) For the purposes of subsection (1) and without limiting that subsection, **reasonable administrative action** is taken to include the following:

- (a) a reasonable appraisal of the employee's performance;
- (b) a reasonable counselling action (whether formal or informal) taken in respect of the employee's employment;
- (c) a reasonable suspension action in respect of the employee's employment;
- (d) a reasonable disciplinary action (whether formal or informal) taken in respect of the employee's employment;
- (e) anything reasonable done in connection with an action mentioned in paragraph (a), (b), (c) or (d);
- (f) anything reasonable done in connection with the employee's failure to obtain a promotion, reclassification, transfer or benefit, or to retain a benefit, in connection with his or her employment.

Section 5B Definition of *disease*

(1) In this Act:

disease means:

- (a) an ailment suffered by an employee; or
- (b) an aggravation of such an ailment;

that was contributed to, to a significant degree, by the employee's employment by the Commonwealth or a licensee.

(2) In determining whether an ailment or aggravation was contributed to, to a significant degree, by an employee's employment by the Commonwealth or a licensee, the following matters may be taken into account:

- (a) the duration of employment;
- (b) the nature of, and particular tasks involved in, the employment;
- (c) any predisposition of the employee to the ailment or aggravation;
- (d) any activities by the employee not related to the employment;
- (e) any other matters affecting the employee's health.

This subsection does not limit the matters that may be taken into account.

(3) In this Act:

significant degree means a degree that is substantially more than material.